

RESCUEN - END USER LICENSE AGREEMENT (EULA), TERMS OF SERVICE, AND PRIVACY POLICY

Effective Date: 1st April, 2026

1. INTRODUCTION AND BINDING AGREEMENT Welcome to RESCUEN (hereinafter referred to as the "App", "Platform", or "Service"). This comprehensive End User License Agreement, Terms of Service, and integrated Privacy Policy (collectively, the "Terms") constitute a legally binding contract between you (the "User", "You", or "Your") and the developers, founders, and administrators of RESCUEN (the "Company", "We", "Us", or "Our").

By downloading, installing, accessing, or using the RESCUEN application, or by clicking the "I Agree" or "Accept" button during the registration process, you acknowledge that you have read, understood, and agree to be bound by these Terms in their entirety. If you do not agree with any provision of these Terms, you are expressly prohibited from using the App and must uninstall it immediately.

2. DEFINITIONS

2.1. "Emergency Alert" refers to the SOS notification, siren, and SMS dispatch triggered by the User through the App.

2.2. "1KM Radar" refers to the geolocation-based matching system that alerts nearby RESCUEN users within a 1-kilometer radius.

2.3. "Personal Data" refers to identifiable information such as Name, Email, Phone Number, Family Contact Number, and real-time GPS Location.

3. NATURE OF THE SERVICE (CRITICAL DISCLAIMER)

RESCUEN is provided as a supplementary personal safety tool designed to broadcast your location and emergency status to nearby app users and pre-designated family contacts. YOU EXPRESSLY UNDERSTAND AND AGREE THAT RESCUEN IS NOT A REPLACEMENT, SUBSTITUTE, OR ALTERNATIVE FOR OFFICIAL EMERGENCY SERVICES (such as

Police, Ambulance, Fire Department, or the 112 National Emergency Number). In the event of a life-threatening emergency, you must prioritize contacting official authorities directly.

4. LIMITATIONS OF TECHNOLOGY The successful operation of RESCUEN depends on various third-party technologies and factors beyond our control. We do not guarantee uninterrupted, instantaneous, or error-free operation. Limitations include, but are not limited to:

4.1. Network & Connectivity: The App requires an active cellular network or internet connection to transmit alerts to the Firebase servers and via SMS. Dead zones, poor signal, or carrier outages will prevent the alert from being dispatched.

4.2. GPS Accuracy: The App relies on your device's internal GPS hardware. Geolocation may be inaccurate due to weather, tall buildings, underground locations, or device malfunction.

4.3. Operating System Restrictions: Android operating systems employ aggressive battery optimization techniques. While we instruct users to grant "Unrestricted" background battery usage and "Auto-Start" permissions, we cannot guarantee that the OS will not forcefully terminate the App's background processes, preventing the siren or SMS trigger.

5. USER RESPONSIBILITIES AND ACCEPTABLE USE As a User of RESCUEN, you agree to the following strict code of conduct:

5.1. Genuine Use Only: The SOS button must exclusively be used in situations of actual distress, danger, threat to life, or severe medical emergencies.

5.2. Zero Tolerance for False Alarms: Deliberately triggering fake SOS alerts to "test" the system in public, play pranks, or cause public panic is strictly forbidden.

5.3. Account Integrity: You are responsible for maintaining the accuracy of your Phone Number and your Family Contact Number. You may only register a phone number that legally belongs to you.

5.4. Prohibited Activities: You agree not to reverse engineer, decompile, hack, or disrupt the App's servers. You must not use the App to track individuals without their consent outside of an active emergency context.

6. PRIVACY POLICY: DATA COLLECTION AND USAGE Protecting your privacy is our utmost priority. This integrated Privacy Policy explains how we handle your data.

6.1. Information We Collect: To provide our safety services, we collect:

- Profile Information: Full Name, Email Address (via Google Sign-In), Gender, Your Phone Number, and your designated Family Emergency Contact Number.
- Real-Time Location Data: We require "Always On" or "Allow all the time" background location permissions.

6.2. How We Use Your Data:

- Location Data is strictly used to match you with nearby users (the 1KM Radar) and to generate a precise Google Maps URL when you trigger an SOS.
- SMS Permissions (SEND_SMS) are strictly utilized to dispatch automated, silent text messages from your device to your family contact and local emergency numbers ONLY when you press the SOS button. We do not read your personal inbox.

6.3. Data Sharing and Third Parties: WE DO NOT SELL, RENT, OR TRADE YOUR PERSONAL DATA TO ADVERTISERS OR DATA BROKERS. Your emergency data (Name, Phone, Live Location) is only broadcasted to nearby RESCUEN users and your family contacts during an active SOS event to facilitate your rescue.

6.4. Data Retention and Deletion: You have the right to request account deletion at any time via the "Profile" section of the App. Upon a deletion request, your account enters a 30-day suspension period. If not cancelled, your Personal Data is permanently and irreversibly wiped from our Firebase servers after 30 days.

7. DISCLAIMER OF WARRANTIES ("AS IS" BASIS) THE RESCUEN APPLICATION IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. TO THE FULLEST EXTENT PERMISSIBLE BY LAW, WE DISCLAIM ALL WARRANTIES, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE APP WILL BE FREE FROM BUGS, CRASHES, DELAYS, OR DOWNTIME.

8. LIMITATION OF LIABILITY UNDER NO CIRCUMSTANCES, INCLUDING NEGLIGENCE, SHALL THE FOUNDERS, DEVELOPERS, AFFILIATES, OR ASSOCIATED ACADEMIC INSTITUTIONS BE HELD LIABLE FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF THE USE OF OR INABILITY TO USE RESCUEN. This includes, but is not limited to:

- Physical harm, injury, assault, or loss of life sustained during an emergency.
- Failure of the App to alert contacts or nearby users.
- Emotional distress or property damage. Your reliance on the App is entirely at your own risk.

9. INDEMNIFICATION You agree to indemnify, defend, and hold harmless RESCUEN, its developers, and affiliates from and against any and

all claims, liabilities, damages, losses, or expenses (including legal and attorney fees) arising out of your misuse of the App, your violation of these Terms, or your violation of any third-party rights.

10. MODIFICATIONS TO THE TERMS We reserve the right to update, modify, or replace these Terms and Privacy Policy at any time. Significant changes will be notified to you via the App. Your continued use of the App following the posting of any changes constitutes your acceptance of those changes.

11. GOVERNING LAW AND JURISDICTION These Terms shall be governed by and construed in accordance with the laws of India. Any legal disputes, claims, or controversies arising out of or relating to these Terms or the use of RESCUEN shall be subject to the exclusive jurisdiction of the competent courts located in West Bengal, India.

12. DIGITAL ACCEPTANCE RECORD By scrolling through this document and checking the acceptance box within the RESCUEN App, a digital signature comprising your User Email, device IP, and a cryptographic timestamp is permanently logged in our database. This constitutes a valid, legally binding electronic agreement under the Information Technology Act.

13. CONTACT US / GRIEVANCE REDRESSAL If you have any questions, concerns, or grievances regarding these Terms, the Privacy Policy, or the App's functionality, please contact our support team:

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